

agreement governs. The court sustains the demurrer to the 6th cause of action with leave to amend.

8th Cause of Action: Slander

Defamation is an invasion of the interest in reputation. The tort involves the intentional publication of a statement of fact that is false, unprivileged, and has a natural tendency to injury or which causes special damages.” (*Smith v. Maldonado* (1999) 72 Cal.App.4th 637, 645.) Defamation consists of two forms: libel and slander. (*Burrill v. Nair* (2013) 217 Cal.App.4th 357, 382.) As relevant here, slander is a false and unprivileged publication, orally uttered that indicates an individual was involved in a crime, has an infectious or contagious disease, that tends to injure someone’s reputation, pertains to the individual’s lack of chastity, or by natural consequences causes actual damages. (Civ. Code § 46.) Slander “can be charged by alleging the substance of the defamatory statement,” rather than the exact words of the statement. (*Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.) The court decides as a question of law whether the allegedly defamatory statement constitutes fact or opinion. (*Gregory v. McDonnell Douglas Corp.* (1976) 17 Cal.3d 596, 601.) What constitutes “a statement of fact in one context may be treated as a statement of opinion in another, in light of the nature and content of the communication taken as a whole.” (*Id.*)

Here, the complaint alleges that “Defendant and others acting with him told third parties that Plaintiffs were ‘kicked out’ for being difficult, harming Plaintiffs’ reputations and professional opportunities.” (Compl., ¶ 14.) It then alleges that “Defendant published false statements of fact to third parties, including that Plaintiffs were ‘kicked out’ for being difficult, implying Plaintiffs engaged in improper conduct and were unfit or unprofessional.” (*Id.*, ¶ 43.) “Difficult” or “unprofessional” are subjective evaluations. Without more, they cannot be an objective provably false statement. The complaint does not allege publication of any specific conduct, or other objectively verifiable facts. It also does not identify whether Defendant or any other person made a particular statement, and is silent as to the listener/receiver, the time of communication, or any other circumstances that would permit evaluation of the meaning of the words or the context when Defendant allegedly speaks. The court in *Okun* relaxes the exact words rule, but it does not eliminate the requirement to plead the substance and actual publication. The court sustains the demurrer to the 8th cause of action with leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601606	ARANA vs BUGARIN	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendant moves to strike punitive damages and the prayer for attorney fees. He argues that paragraph 31 merely recites Civ. Code section 3294 without facts. He asserts that the demand for attorney fees has no basis.

In opposition, Plaintiffs argue that concealment and diversion support fraud and therefore punitive damages. They argue that the attorney fee request is conditional and that a common-fund doctrine or other equitable basis may develop. They request leave to amend any defective allegation.

In reply, Defendant argues that Plaintiffs identify no facts that would cure the claims.

A. Analysis

Standards

A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (CCP § 436.) The grounds must appear on the face of the pleading or judicial notice. (*Id.* at § 437.) A motion to strike is widely used to challenge portions of causes of action seeking punitive damages, but may not substitute for a demurrer to an entire cause of action as a “line item veto.” (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-83.)

In order to plead punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.) Generally, claims for punitive damages must be pled with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.)

Punitive Damages

Paragraph 31 under the 4th cause of action (the fraud count) alleges that “Defendant’s conduct was malicious, oppressive, or fraudulent.” (Compl., ¶ 31.) As discussed above, the complaint does not sufficiently plead the fraud or conversion claims. The prayer also limits the punitive request to the “fraud and conversion-related claims.” (Prayer, ¶ 6.) On this record, paragraph 31 and prayer paragraph 6 is stricken as the complaint lacks a sufficiently pled tort tied to punitive damages.

Attorney Fees

CCP §1021 generally leaves attorney compensation to the parties’ agreement, express or implied, unless a statute authorizes recovery. The complaint alleges only an oral partnership agreement but is silent as to attorney’s fees. (Compl., ¶¶ 7, 16.) It identifies no applicable statute. The court grants the motion to strike the attorney fee language in Prayer ¶8.

Ruling

Sustain the demurrer as to the 4th, 5th, 6th, and 8th causes of action with 30 days leave to amend. Deem the motion to strike ¶¶31 moot as the court is sustaining the demurrer to the 4th cause of action. Grant the motion to strike Prayer ¶¶6 (punitive damages) and Prayer ¶¶8 (attorney fees) with 30 days leave to amend.